

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

ANTOINETTE WILLIAMS and HERMAN
MAXWELL,

Index No.

Plaintiff,

v.

Summons

THE CITY OF NEW YORK, SGT. ARIANA
ESTEBAN, NYPD OFFICER CARLOS
GARCIA, LIEUTENANT GERARDO DECARO,
NYPD OFFICER LEWIS NUNEZ and NYPD
OFFICER "JOHN DOE," the name being
fictitious,

Index No. Purchased:

Defendants.

To the above named Defendant(s)

THE CITY OF NEW YORK
100 Church Street
New York, NY 10007

SGT. ARIANA ESTEBAN
NYPD 47TH Precinct
4111 Laconia Ave.
Bronx, NY 10466

NYPD OFFICER CARLOS GARCIA
NYPD 47TH Precinct
4111 Laconia Ave.
Bronx, NY 10466

LIEUTENANT GERARDO DECARO
NYPD 47TH Precinct
4111 Laconia Avenue
Bronx, NY 10466

NYPD OFFICER LEWIS NUNEZ
NYPD 47TH Precinct
4111 Laconia Avenue
Bronx, NY 10466

You are hereby summoned to answer the complaint in this
action and to serve a copy of your answer, or, if the complaint
is not served with this summons, to serve a notice of appearance,
on the Plaintiff's attorney within 20 days after the service of

this summons, exclusive of the day of service (or within 30 days after the service is complete if this summons is not personally delivered to you within the State of New York); and in case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

The basis of venue is Plaintiff's place of residence at the time of the accident, which was, and still is Bronx, NY.

Dated: July 19, 2019
New York, NY

MICHAEL J. REDENBURG, ESQ. PC

By:


Attorney for Plaintiffs
32 Broadway, Ste. 811
New York, NY 10004
1-212-240-9465 (Phone)
1-917-591-1667 (Fax)

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

- - - - -X

ANTOINETTE WILLIAMS and HERMAN
MAXWELL,

Plaintiff,

- against -

PLAINTIFFS'
VERIFIED
COMPLAINT

THE CITY OF NEW YORK, SGT. ARIANA
ESTEBAN, NYPD OFFICER CARLOS
GARCIA, LIEUTENANT GERARDO DECARO,
NYPD OFFICER LEWIS NUNEZ, and NYPD
OFFICER "JOHN DOE," the name being
fictitious,

Defendants.

- - - - -X

Plaintiffs, by their attorney, MICHAEL J. REDENBURG, ESQ.,
P.C., complaining of the defendants, respectfully alleges as
follows:

AS AND FOR A FIRST CAUSE OF ACTION ON
BEHALF OF PLAINTIFF, ANTOINETTE WILLIAMS AND HERMAN MAXWELL:

1. That at all times hereinafter mentioned, and at the
time of the occurrence hereinafter more particularly set forth,
defendant, THE CITY OF NEW YORK, was and still is a municipal
corporation, duly organized and existing under and pursuant to
the Laws of the State of New York, under its corporate name,
style and title of THE CITY OF NEW YORK.

2. That prior to the commencement of this action and
within ninety (90) days of the happening of the occurrence as

3.

hereafter more particularly set forth, plaintiffs duly served upon defendant, THE CITY OF NEW YORK, a Notice of Claim and that thirty (30) days have elapsed or expired and said claim has not been adjusted or paid; that this action is brought within one year and ninety days of the happening of said occurrence.

3. That plaintiff, ANTOINETTE WILLIAMS has yet to be examined by defendant, THE CITY OF NEW YORK, its agents, servants and/or employees, pursuant to notice, inasmuch as criminal charges are pending against the said plaintiff, and said plaintiff has invoked her Fifth Amendment privilege against self-incrimination, and has otherwise complied with the requirements of Section 50-H of the General Municipal Law.

4. That plaintiff, HERMAN MAXWELL, has been examined by defendant, THE CITY OF NEW YORK, its agents, servants and/or employees, pursuant to notice, and said plaintiff has otherwise complied with the requirements of Section 50-H of the General Municipal Law.

5. At all times hereinafter mentioned, defendant, SGT. ARIANA ESTEBAN, was employed by defendant, THE CITY OF NEW YORK.

6. At all times hereinafter mentioned, defendant, NYPD OFFICER CARLOS GARCIA, was employed by defendant, THE CITY OF NEW YORK.

7. At all times hereinafter mentioned, defendant, LIEUTENANT GERARDO DECARO, was employed by defendant, THE CITY OF NEW YORK.

8. At all times hereinafter mentioned, defendant, NYPD OFFICER LEWIS NUNEZ, was employed by defendant, THE CITY OF NEW YORK.

9. Upon information and belief, that at all times hereinafter mentioned, defendant, NYPD OFFICER "JOHN DOE", the name being fictitious, was employed by defendant, THE CITY OF NEW YORK.

10. Upon information and belief, that at all times hereinafter mentioned, defendant, SGT. ARIANA ESTEBAN, acted as the agent, servant and/or employee of the defendant, THE CITY OF NEW YORK and acted in the course of her employment.

11. Upon information and belief, that at all times hereinafter mentioned, defendant, NYPD OFFICER CARLOS GARCIA, acted as the agent, servant and/or employee of the defendant, THE CITY OF NEW YORK and acted in the course of his employment.

12. Upon information and belief, that at all times hereinafter mentioned, defendant, LIEUTENANT GERARDO DECARO, acted as the agent, servant and/or employee of the defendant, THE CITY OF NEW YORK and acted in the course of his employment.

13. Upon information and belief, that at all times hereinafter mentioned, defendant, NYPD OFFICER LEWIS NUNEZ, acted as the agent, servant and/or employee of the defendant, THE CITY OF NEW YORK and acted in the course of his employment.

14. Upon information and belief, that at all times hereinafter mentioned, defendant, NYPD OFFICER "JOHN DOE", acted as the agent, servant and/or employee of the defendant, THE CITY

OF NEW YORK and acted in the course of his/her employment.

15. That at all times hereinafter mentioned, and at the time of the occurrence hereinafter more particularly set forth, plaintiff, ANTOINETTE WILLIAMS, was rightfully and lawfully a passenger in a vehicle located at or near the northeast corner of Wallace Avenue and North Oak Drive, Bronx, NY.

16. That at all times hereinafter mentioned, and at the time of the occurrence hereinafter more particularly set forth, plaintiff, HERMAN MAXWELL, was rightfully and lawfully operating a vehicle located at or near the northeast corner of Wallace Avenue and North Oak Drive, Bronx, NY.

17. That on March 16, 2019, at approximately 2:40 a.m. the plaintiff, ANTOINETTE WILLIAMS was rightfully and lawfully a passenger in a vehicle located at or near the northeast corner of Wallace Avenue and North Oak Drive, Bronx, New York, when an officer and/or officers affiliated with defendant, THE CITY OF NEW YORK, was maliciously and viciously attacked by the individually named defendants, without any regard for her safety and/or well being, thereby causing plaintiff, ANTOINETTE WILLIAMS, to sustain serious and severe personal injuries, including, but not limited to, a fractured right humerus; handcuffed her, falsely arrested her, falsely imprisoned and subjected her to a number of other acts at the hands of said officers, and the defendants, and each of them, their respective agents, servants and/or employees, at that time, and without any just cause or provocation, maliciously assaulted, beat, struck and ill-treated the plaintiff and caused the plaintiff to be violently thrown and knocked about, and further caused the

plaintiff to sustain serious and severe personal injuries as hereinafter more particularly set forth.

18. That on March 16, 2019, at approximately 2:40 a.m. the plaintiff, HERMAN MAXWELL was rightfully and lawfully operating a vehicle located at or near the northeast corner of Wallace Avenue and North Oak Drive, Bronx, New York, when an officer and/or officers affiliated with defendant, THE CITY OF NEW YORK, handcuffed him, falsely arrested him, falsely imprisoned him and subjected him to a number of other acts at the hands of said officers, and the defendants, and each of them, their respective agents, servants and/or employees, at that time, and without any just cause or provocation.

19. That on or about the 16th day of March, 2019, at approximately 2:40 a.m., the individually named defendants, including POLICE OFFICER "JOHN DOE", the name being fictitious, and other police officers, and/or officers, the respective agents, servants and/or employees of the defendant, THE CITY OF NEW YORK and/or defendant, acting in the course of their employment and with a view toward the furtherance of the business and interests of their aforesaid employer, THE CITY OF NEW YORK, undertook, at that time, without any just cause or provocation, to maliciously assault, beat, strike and ill-treat the plaintiff, ANTOINETTE WILLIAMS, and violently throw and knock said plaintiff about, causing plaintiff to sustain the serious personal injuries hereinafter more particularly set forth.

20. That on or about the 16th day of March, 2019, at approximately 2:40 a.m. the individually named defendants, including POLICE OFFICER "JOHN DOE", the name being fictitious, and other police officers, and/or officers, the respective

agents, servants and/or employees of the defendant, THE CITY OF NEW YORK and/or defendant, acting in the course of their employment and with a view toward the furtherance of the business and interests of their aforesaid employer, THE CITY OF NEW YORK, undertook, at that time, without any just cause or provocation, to ill-treat the plaintiff, HERMAN MAXWELL, as hereinafter more particularly set forth.

21. That on or about the 16th day of March, 2019, at approximately 2:40 a.m., the individually named defendants, including NYPD OFFICER "JOHN DOE", the name being fictitious, and other police officers, and/or officers, the respective agents, servants and/or employees of the defendant, THE CITY OF NEW YORK, at that time, without any just cause or provocation, maliciously assaulted, beat, struck and ill-treated the plaintiff, ANTOINETTE WILLIAMS, and violently threw and knocked said plaintiff about, with the knowledge, permission and consent of their employer, the said defendant, THE CITY OF NEW YORK, while in the course of their employment for said defendant-employer and/or employers.

22. That on or about the 16th day of March, 2019, at approximately 2:40 a.m., the individually named defendants, including NYPD OFFICER "JOHN DOE", the name being fictitious, and other police officers, and/or officers, the respective agents, servants and/or employees of the defendant, THE CITY OF NEW YORK, at that time, without any just cause or provocation, ill-treated the plaintiff, HERMAN MAXWELL, with the knowledge, permission and consent of their employer, the said defendant, THE CITY OF NEW YORK, while in the course of their employment for said defendant-employer and/or employers.

23. That the aforesaid assault committed by the individually named defendants, including NYPD OFFICER "JOHN DOE", the name being fictitious, and other police officers, and/or officers, the respective agents, servants and/or employees of the defendant, THE CITY OF NEW YORK, upon the plaintiffs, was without just cause of provocation.

24. That the said malicious acts were done by the individually named defendants, including NYPD OFFICER "JOHN DOE", the name being fictitious, and other police officers, and/or officers, with the knowledge, consent, approval, encouragement and ratification of the defendant, THE CITY OF NEW YORK, their respective agents, servants and/or employees.

25. That solely by reason of the aforesaid assault upon Plaintiff, ANTOINETTE WILLIAMS, committed by the said defendants, and each of them, their respective agents, servants and/or employees, upon the plaintiff, said plaintiff sustained serious and severe injuries to her body and limbs, suffered shock to her nervous system, and internal injuries; was caused to suffer great physical pain and mental anguish as a result thereof so that she was rendered sick, sore, lame and disabled; was caused to suffer, did suffer, and, upon information and belief, will continue to suffer greatly bodily and mental pain. Upon information and belief, all of plaintiff's injuries are of a permanent nature.

26. That solely by reason of the aforesaid acts and ill-treatment upon Plaintiff, HERMAN MAXWELL, committed by the said defendants, and each of them, their respective agents, servants and/or employees, upon the plaintiff, said plaintiff sustained loss of liberty, shock and embarrassment; was caused to suffer great mental anguish as a result thereof; and was caused to

suffer, did suffer, and, upon information and belief, will continue to suffer great mental pain and anguish. Upon information and belief, all of plaintiff's injuries are of a permanent nature.

27. That by reason of the premises aforesaid, plaintiff, ANTOINETTE WILLIAMS, was caused to expend sums of money for medical aid and attention, and to incur obligations for the same. Upon information and belief, plaintiff will in the future be caused to expend further sums of money.

28. That by reason of the premises aforesaid, plaintiffs were incapacitated from attending to their usual occupation and employment and lost the income and/or remuneration therefrom. Upon information and belief, said plaintiffs will continue to be so incapacitated from their usual occupation and employment for a long period of time and will lose income and/or remuneration therefrom.

29. That by reason of the premises aforesaid, plaintiffs have each individually been damaged in an amount which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction.

AS AND FOR A SECOND CAUSE OF ACTION
FOR EXEMPLARY AND/OR PUNITIVE DAMAGES
ON BEHALF OF PLAINTIFFS, ANTOINETTE
WILLIAMS and HERMAN MAXWELL:

30. Plaintiffs repeat, reiterate and reallege each and every allegation contained in paragraphs of this complaint

hereinbefore designated "1" through "29" inclusive, with the same force and effect as if here again at length set forth.

31. That on or about the 16th day of March, 2019, at approximately 2:40 a.m., the plaintiffs were lawfully and properly in a vehicle in the vicinity of Wallace Avenue and North Oak Drive, Bronx, New York, when an officer and/or officers affiliated with defendant, THE CITY OF NEW YORK, jumped the plaintiff, ANTOINETTE WILIAMS, and threw the said plaintiff in the vehicle, causing plaintiff, ANTOINETTE WILLIAMS, to be handcuffed, falsely arrested, falsely imprisoned, maliciously prosecuted and subjected plaintiff to a number of other acts at the hands of said officer and/or officers, and the defendants, and each of them, their respective agents, servants and/or employees, at that time, and without any just cause or provocation, maliciously assaulted, beat, struck and ill-treated the plaintiff, causing the plaintiff to be violently thrown and knocked about, and further causing the plaintiff to sustain serious and severe personal injuries herein.

32. That on or about the 16th day of March, 2019, at approximately 2:40 a.m., the plaintiffs were lawfully and properly in a vehicle in the vicinity of Wallace Avenue and North Oak Drive, Bronx, New York, when an officer and/or officers affiliated with defendant, THE CITY OF NEW YORK, caused plaintiff, HERMAN MAXWELL, to be handcuffed, falsely arrested, falsely imprisoned and subjecting plaintiff to a number of other acts at the hands of said officer and/or officers, and the defendants, and each of them, their respective agents, servants and/or employees, at that time, and without any just cause or provocation, ill-treated the plaintiff and caused him great mental pain and anguish.

33. That on or about the 16th day of March, 2019, at approximately 2:40 a.m., the aforesaid defendants, and/or each of them, their respective agents, servants and/or employees, without any just cause or provocation, abused process and willfully had the plaintiff, ANTOINETTE WILLIAMS, arrested, imprisoned, maliciously prosecuted and intentionally inflicted emotional distress upon the plaintiff and by said acts defamed the plaintiff.

34. That on or about the 16th day of March, 2019, at approximately 2:40 a.m., the aforesaid defendants, and/or each of them, their respective agents, servants and/or employees, without any just cause or provocation, abused process and willfully had the plaintiff, HERMAN MAXWELL, arrested, imprisoned and intentionally inflicted emotional distress upon the plaintiff and by said acts defamed the plaintiff.

35. That by reason of the premises aforesaid, these plaintiffs have each individually been damaged in an amount which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction.

AS AND FOR A THIRD CAUSE OF ACTION FOR ABUSE
OF PROCESS ON BEHALF OF PLAINTIFFS:

36. That these plaintiffs repeat, reiterate and reallege each and every allegation contained in paragraphs of this complaint hereinbefore designated "1" through "35" inclusive,

with the same force and effect as if here again at length set forth.

37. That the defendants, and each of them, their respective agents, servants and/or employees, arrested plaintiffs, ANTOINETTE WILLIAMS and HERMAN MAXWELL, without just cause or provocation and thereby used legally issued and/or lawful process illegally and/or improperly and/or for a purpose for which it was not intended.

38. That by reason of the premises aforesaid, these plaintiffs have each individually been damaged in an amount which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction.

AS AND FOR A FOURTH CAUSE OF ACTION
FOR FALSE ARREST OF PLAINTIFFS:

39. That these plaintiffs repeat, reiterate and reallege each and every allegation contained in paragraphs of this complaint hereinbefore designated "1" through "38" inclusive, with the same force and effect as if here again at length set forth.

40. That the defendants, and each of them, their respective agents, servants and/or employees, arrested the plaintiffs and handcuffed them without just cause or provocation thereby restricting their movements and freedom of choice as to where they wished to go and what they wished to do.

41. That by reason of the premises aforesaid, these plaintiffs have each individually been damaged in an amount which

exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction.

AS AND FOR A FIFTH CAUSE OF ACTION FOR
FALSE IMPRISONMENT OF PLAINTIFFS:

42. That these plaintiffs repeat, reiterate and reallege each and every allegation contained in paragraphs of this complaint hereinbefore designated "1" through "41" inclusive, with the same force and effect as if here again at length set forth.

43. That the defendants, and each of them, their respective agents, servants and/or employees, imprisoned the plaintiffs without just cause or provocation thereby restricting their movements and freedom of choice as to where they wished to go and what they wished to do.

44. That by reason of the premises aforesaid, these plaintiffs each individually suffered damages in an amount which exceed the jurisdictional limits of all lower courts which would otherwise have jurisdiction.

AS AND FOR A SIXTH CAUSE OF ACTION FOR
MALICIOUS PROSECUTION OF PLAINTIFF, ANTOINETTE WILLIAMS:

45. That this plaintiff, ANTOINETTE WILLIAMS, repeats, reiterates and realleges each and every allegation contained in paragraphs of this complaint hereinbefore designated "1" through "44" inclusive, with the same force and effect as if here again at length set forth.

46. That defendants, and each of them, their respective agents, servants and/or employees, without just cause or provocation, and after first arresting and then imprisoning plaintiff, ANTOINETTE WILLIAMS, caused plaintiff to be haled into court on the false and fraudulent charges upon which the defendants arrested and imprisoned plaintiff, ANTOINETTE WILLIAMS.

47. That by reason of the premises aforesaid, this plaintiff, ANTOINETTE WILLIAMS, suffered damages in an amount which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction.

AS AND FOR A SEVENTH CAUSE OF ACTION FOR
ASSAULT AND BATTERY OF PLAINTIFF, ANTOINETTE WILLIAMS:

48. That this plaintiff, ANTOINETTE WILLIAMS, repeats, reiterates and realleges each and every allegation contained in paragraphs of this complaint hereinbefore designated "1" through "47" inclusive, with the same force and effect as if here again at length set forth.

49. That the defendants, and each of them, their respective agents, servants and/or employees, without just cause or provocation, maliciously assaulted, battered, beat, struck and ill-treated the plaintiff, ANTOINETTE WILLIAMS, and violently threw and knocked said plaintiff about, and caused plaintiff to sustain severe personal injuries.

50. That by reason of the premises aforesaid, this plaintiff, ANTOINETTE WILLIAMS, suffered damages in an amount which exceeds the jurisdictional limits of all lower courts which

would otherwise have jurisdiction.

AS AND FOR AN EIGHTH CAUSE OF ACTION FOR INTENTIONAL
INFLICTION OF EMOTIONAL DISTRESS UPON PLAINTIFFS:

51. That these plaintiffs repeat, reiterate and reallege each and every allegation contained in paragraphs of this complaint hereinbefore designated "1" through "50" inclusive, with the same force and effect as if here again at length set forth.

52. That as a result of the false arrest, false imprisonment, malicious prosecution, assault and battery of the plaintiff, ANTOINETTE WILLIAMS, by the defendants, and each of them, their respective agents, servants and/or employees, plaintiff, ANTOINETTE WILLIAMS, suffered and continues to suffer from emotional distress, which may be permanent or long lasting in nature.

53. That as a result of the false arrest and false imprisonment of the plaintiff, HERMAN MAXWELL, by the defendants, and each of them, their respective agents, servants and/or employees, plaintiff, HERMAN MAXWELL, suffered and continues to suffer from emotional distress, which may be permanent or longlasting in nature.

54. That by reason of the premises aforesaid, these plaintiffs, each individually, suffered damages in an amount which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction.

WHEREFORE, plaintiffs, ANTOINETTE WILLIAMS and HERMAN MAXWELL, demand judgment against the defendants, and each of them, in an amount which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction on each of their respective causes of action, as set forth herein, together with the costs and disbursements of this action.



MICHAEL J. REDENBURG, ESQ, PC
Attorney for Plaintiffs
32 Broadway, Suite 811
New York, NY 10004
212-240-9465

VERIFICATION

STATE OF NEW YORK)
) ss:
COUNTY OF NEW YORK)

The undersigned, an attorney admitted to practice law in the courts of the state of New York, states:

I am the attorney for the Plaintiffs herein. I have read the foregoing VERIFIED COMPLAINT and know the contents thereof; the same is true to your affirmant's knowledge, except as to the matters therein stated to be alleged on information and belief, and that as to those matters, affirmant believes them to be true. This verification is made by affirmant and not by the Plaintiffs, because the Plaintiffs reside out of the county in which affirmant maintains his office.

The grounds of your affirmant's belief as to all matters not stated upon your affirmant's knowledge are as follows: facts and records in my file.

The undersigned affirms that the foregoing statements are true, under the penalty of perjury.

Dated: New York, NY
 July 19, 2019



Michael J. Redenburg, Esq.